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Map Shows 11 US States Banning Food Dyes

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California has become the first state in the country to ban certain food dyes—and more states could soon follow suit.

This week, Governor Gavin Newsom signed a bill banning food containing any of six widely used food dyes in schools due to concerns that they may contribute to behavior and attention issues in some children: Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6.

"California is once again leading the nation when it comes to protecting our kids from dangerous chemicals that can harm their bodies and interfere with their ability to learn," said Assemblymember Jesse Gabriel, who authored the bill.

Color additives have long been used in food production throughout the U.S. and the world, and many are approved for use by the U.S. Food and Drug Administration (FDA). Some dyes, particularly Red Dye 3, have been a cause of concern for food safety experts and consumers because of their supposed links to Attention Deficit Hyperactivity Disorder (ADHD).

Which States Could Ban Food Dyes?

Following California, nine other states currently have legislation in the works that would ban some types of food dyes and other additives. These are:

* Illinois - Red Dye 3

* Maryland - Red Dye 3

* Missouri - Red Dye 3

* New Jersey - Red Dye 3

* New York - Red Dye 3

* Pennsylvania - Red Dye 3, Red Dye 40, Yellow Dye 5, Yellow Dye 6, Blue Dye 1 and Blue Dye 2

* Rhode Island - Red Dye 3

* South Dakota - Red Dye 3

* Washington - Red Dye 3

* West Virginia - Red Dye 3

All these states currently have bills that would ban the use of certain dyes statewide, not just in schools. Red Dye 3, or Erythrosine, is a color additive made from petroleum that gives foods and drinks a bright cherry-red color. According to a database maintained by the Environmental Working Group, more than 2,700 products available for purchase in the U.S. contain Red Dye 3.

Are Food Dyes Bad For You?

Several studies have linked the use of Red Dye 3 to either causing or exacerbating "hyperactivity, inattentiveness, and other behavioral problems in children," according to The Center for Science in the Public Interest, which backed the California bill.

Dr. Jamie Alan, an associate professor in the Department of Pharmacology and Toxicology at Michigan State University, said in an interview with Contemporary Pediatrics last year that studies have shown an "association between Red Dye 3 consumption and an increase or an exacerbation of ADHD symptoms and children."

He said that Red Dye 3 is often used "in combination with other dye and other preservatives," so some research may be limited as it is "really very tricky to dissociate the effects" of Red Dye 3 from "the other preservatives or other dye products" that may be used in a food product.

However, WebMD reports that no studies have proved a conclusive link between food coloring and ADHD. "Some studies, though, have suggested an association between the two," an article on the website reads. "Most likely, ADHD is caused by the combination of changes in brain structure, environmental factors, and heredity."

"Reassessing the safety of chemicals in food as new, relevant data become available is a priority for the FDA," the FDA said in a statement in August when the California bill was passed by lawmakers.

"The FDA has reviewed the research on the effects of color additives on children's behavior including the literature review cited by the Bill. The totality of scientific evidence shows that most children have no adverse effects when consuming foods containing color additives, but some evidence suggests that certain children may be sensitive to them."

Newsweek reached out to the FDA for additional comment via email outside of standard working hours.

In 1990, the FDA rejected a petition to authorize the use of Red Dye 3 in cosmetics and topical drugs as it was found to have carcinogenic effects in animals.

"The way that Red No. 3 causes cancer in animals, specifically rats, does not occur in humans so these animal results have limited relevance to humans," the FDA website reads.

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